

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Wells Fargo Bank, N.A. v. Phillip P Coulter

24CV002239

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT PURSUANT TO
STIPULATION**

TENTATIVE RULING: The motion is DENIED.

Wells Fargo Bank, N.A. (Plaintiff) moves, pursuant to Code of Civil Procedure section 664.6, to vacate the dismissal in this instant matter and enter Judgment pursuant to the Parties' Stipulation.¹

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

The unspoken inference in Plaintiff's argument is that Section 664.6 authorizes the Court to vacate an order dismissing the action. Plaintiff fails to support the inference with discussion, argument, or citation to case law.

Because the matter was dismissed, by stipulation of the parties, on May 15, 2025, the Court lacks jurisdiction to enter the requested judgment.

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court...for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (§ 664.6, subd. (a).)

As the Court reads the statute, it permits parties to a settlement agreement to move the Court to enter judgment on the action, *and under those circumstances*, to retain jurisdiction to enforce the settlement. The Court can find no language in the statute that would permit the Court

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

to vacate a dismissal entered at the parties' request in order to regain jurisdiction to enter judgment.

“An action which is voluntarily dismissed in its entirety is no longer pending. [Citation.]” (*Viejo Bancorp, Inc. v. Wood* (1989) 217 Cal.App.3d 200, 206 (*Viejo*)). Even if the Court finds that Respondent breached the settlement agreement, “the court’s resolution of this factual issue [would] not permit it to enter judgment in the [dismissed] action. In short, in the absence of a motion under Code of Civil Procedure section 473 to vacate the dismissal, the court [is] without subject matter jurisdiction of the [dismissed] action.” (*Ibid.*)

As noted above, On May 15, 2025, the Court, on stipulation of the parties, dismissed the instant action by signing an order proposed by Plaintiff. Pursuant to the holding in *Viejo*, the Court is without jurisdiction to enter judgment in this action, pursuant to Section 664.6 or otherwise. This is not to say that Plaintiff is without rights to assert a claim against Defendant for breach of the settlement agreement. But this Court does not have jurisdiction to consider the claim in this action. (See *Viejo, supra*, 217 Cal.App.3d at 206.)

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University Credit Union v. Kamaladevi Zamora

25CV000637

**DEFENDANT’S MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF
UNIVERSITY CREDIT UNION AND FOR SANCTIONS**

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Kamaladevi Zamora (“Defendant”) moves, pursuant to Code of Civil Procedure 2025.230,² to compel the further deposition testimony of Plaintiff University Credit Union (“Plaintiff”). Defendant further moves, pursuant to section 2023.030, for sanctions against Plaintiff. Although not in the Notice of Motion, the specific relief Defendant seeks through the moving papers is an order compelling Plaintiff to produce “Frank Perez for further deposition” or produce a “properly prepared” and “true” person most qualified (“PMQ”) who is able to speak on all categories in the Notice of Deposition, served February 24, 2026, and who is familiarized with all produced documents. (See Mem., 1:19-20, 5:23, 14:17-27.)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.